

Senate File 2427

S-5059

1 Amend Senate File 2427 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 673B.1 Definitions.

5 As used in this chapter, unless the context otherwise
6 requires:

7 1. "*Agricultural commodity*" means a farm animal or farm crop
8 as each is defined in section 673A.3.

9 2. a. "*Agricultural source*" means the location where an
10 agricultural commodity is produced, handled, housed, stored,
11 preserved, processed, distributed, or sold.

12 b. "*Agricultural source*" includes the location where an
13 agricultural retailer or agricultural service provider conducts
14 an activity.

15 3. "*Greenhouse gas*" means a gas derived from human activity
16 or a natural source that is any of the following:

17 a. Originating from any of the following:

18 (1) An agricultural source.

19 (2) A petroleum source.

20 (3) A renewable fuel source.

21 b. Any of the following gases:

22 (1) Carbon dioxide.

23 (2) Hydrofluorocarbons.

24 (3) Methane.

25 (4) Nitrogen trifluoride.

26 (5) Nitrous oxide.

27 (6) Sulfur hexafluoride.

28 (7) Perfluorocarbons.

29 4. "*Petroleum source*" means a location where petroleum or a
30 petroleum product is manufactured, stored, or dispensed.

31 5. "*Regulatory authority*" means the department of natural
32 resources or a federal agency regulating greenhouse gas
33 emissions, including the United States environmental protection
34 agency.

35 6. "*Renewable fuel source*" means a location where renewable

SF 2427.3009 (2) 91

(amending this SF 2427 to CONFORM to HF 2527)

1 fuel, as defined in section 214A.1, is manufactured, stored,
2 or dispensed.

3 Sec. 2. NEW SECTION. **673B.2 Action based on climate —**
4 **limitation on liability.**

5 1. Subject to section 673B.3, in any civil or criminal
6 action, a defendant is not liable, and is not subject to
7 any judicial remedy, under any principle of law or equity,
8 for damages or injury from any alleged actual or potential
9 effect on climate caused wholly or partly by a greenhouse gas
10 emission.

11 2. Subsection 1 applies regardless of the civil or criminal
12 action brought or type of relief sought, whether legal or
13 equitable.

14 3. A person bringing a civil or criminal action that alleges
15 damages or injury as described in subsection 1 must do all of
16 the following:

17 a. Specify each greenhouse gas emitted by the defendant that
18 as asserted gives rise to the civil or criminal action.

19 b. Show by clear and convincing evidence that unavoidable
20 and identifiable damage or injury has resulted or will
21 result as a direct cause of the defendant's violation of an
22 enforceable statutory limitation or restriction or a valid,
23 enforceable operating, air, or other permit issued to the
24 defendant by a regulatory authority.

25 Sec. 3. NEW SECTION. **673B.3 Action based on climate —**
26 **applicability.**

27 Section 673B.2 applies unless the district court in the
28 civil or criminal case finds by clear and convincing evidence
29 that the defendant has violated any of the following:

30 1. An enforceable statutory limitation or restriction
31 governing the emission of a specific greenhouse gas originating
32 within this state.

33 2. An express term of a valid, enforceable operating,
34 air, or other permit issued to the defendant by a regulatory
35 authority that has jurisdiction over the defendant's greenhouse

1 gas emissions.

2 Sec. 4. NEW SECTION. **673B.4 Statutory construction.**

3 This chapter shall not be construed to create either a right
4 to bring any civil or criminal action, or a judicial remedy,
5 under any principle of law or equity, based on the potential
6 effect on climate caused wholly or partly by a greenhouse gas
7 emission.>

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